

Petition to modify irrevocable trust is recommended for approval as prayed.

22. S-PR-0014103 In Re the Estate of Nunes, Darlene Marie

Missing required allegations at ¶ 6 of the petition. The response to calendar notes addressed only the ¶ 7 issue.

23. S-PR-0014106 In Re the Annette M Sunde Supplemental Needs Trust

Appearance is required for hearing on trust petition.

It is recommended the trustee 1st / final account be approved.

It is recommended the request to confirm trusteeship of Foster be approved in part. The trust grants power to the trustee of the Carol A Gage & James W Gage Rev Living Trust to name a successor trustee of the SNT share. The power to name a successor SNT trustee cannot be limited to the time of Carol Gage's death as an executor cannot be appointed until after death and appointment could occur a significant period time—even years—after death. Nothing in the trust language limits the power of an executor or of the trustee to act to the time at or very soon after settlor's death. However, neither does the trust language empower the trustee to remove SNT successor trustees at will (or even for cause). As Kinsman has stated an intention to resign, it is recommended the court find that Fielding, as trustee of the Carol A Gage & James W Gage Rev Living Trust, has power to name a successor.

It is recommended the request to modify the trust be denied under Prob.C. § 17202.

Confirmation of Foster as trustee, however, cannot include waiver of bond. Foster is required to be bonded. See Prob.C. § 15602(a)(3). Petitioner offers nothing which constitutes "compelling circumstances" to excuse the requirement for trustee bond. Prob.C. § 15602(b).

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the parties and the court to prepare for the hearing.

24. S-PR-0014108 In Re the Stevens Fam Trust

Appearance is required for hearing on petition to compel trustee account.

25. S-PR-0014110 In Re the Estate of Bayes, Peter

Missing sufficient publication of notice of hearing. The notice as published was for a July 24 hearing that was rescheduled by the court. Petitioner was notified of the revised court date by an order filed June 2. Missing published notice of hearing for the July 27 date.